

Opinion of the Court

tures” that could qualify it as a “political committee.” If it decides that the communications here do not qualify, then the lower courts can still evaluate the significance of the communicative context in which the case arises. If, on the other hand, it decides that they do qualify, the matter will become moot. Pp. 26–29.

101 F. 3d 731, vacated and remanded.

BREYER, J., delivered the opinion of the Court, in which REHNQUIST, C. J., and STEVENS, KENNEDY, SOUTER, and GINSBURG, JJ., joined. SCALIA, J., filed a dissenting opinion, in which O’CONNOR and THOMAS, JJ., joined, *post*, p. 29.

Solicitor General Waxman argued the cause for the United States. With him on the briefs were *Acting Solicitor General Dellinger*, *Malcolm L. Stewart*, *Lawrence M. Noble*, *Richard B. Bader*, and *David Kolker*.

Daniel M. Schember argued the cause for respondents. With him on the brief was *Abdeen Jabara*.*

JUSTICE BREYER delivered the opinion of the Court.

The Federal Election Commission (FEC) has determined that the American Israel Public Affairs Committee (AIPAC) is not a “political committee” as defined by the Federal Election Campaign Act of 1971 (FECA or Act), 86 Stat. 11, as amended, 2 U. S. C. § 431(4), and, for that reason, the FEC has refused to require AIPAC to make disclosures regarding its membership, contributions, and expenditures that FECA would otherwise require. We hold that respondents, a group of voters, have standing to challenge the

*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union et al. by *Joel M. Gora*, *Steven R. Shapiro*, and *Arthur N. Eisenberg*; and for the National Right to Life Committee, Inc., by *James Bopp, Jr.*

A. Stephen Hut, Jr., *Roger M. Witten*, *Jeffrey P. Singdahlsen*, and *Donald J. Simon* filed a brief for Common Cause as *amicus curiae* urging affirmance.

Briefs of *amici curiae* were filed for the American Israel Public Affairs Committee by *Theodore B. Olson*, *Mel Levine*, *Thomas G. Hungar*, and *Philip Friedman*; and for the Brennan Center for Justice by *Burt Neuborne*.